

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

-----X
CAVELL TATE,

Plaintiff,

Plaintiffs designate New York
County as the place of trial.

-against-

The basis of venue is
Location of the incident

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. EDWARD MENDEZ,
individually and in his official capacity as a New York
City Police Officer, P.O. "JOHN" WILINSKI,
individually and in his official capacity as a New York
City Police Officer, JOHN AND JANE DOES, said
names being fictitious and intended to represent
individual officers of the New York City Police
Department,

Defendants.

SUMMONSPlaintiffs reside in New York
County.-----X
To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 15, 2013

Yours, etc.



Derek Sells
THE COCHRAN FIRM
Attorneys for Plaintiffs
233 Broadway, 5th Floor
New York, New York 10279
(212) 227-9740

Defendants Addresses:

CITY OF NEW YORK, 100 Church Street, New York, NY 10007

POLICE OFFICER DEFTS.: c/o NYPD, One Police Plaza, New York, NY 10038

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individual officers of the New York City Police Department,

VERIFIED COMPLAINT

Defendants.
-----X

Filed on: _____

Plaintiff CAVELL TATE ("Mr. Tate" or "Plaintiff"), by and through his counsel, as and
for his Verified Complaint against Defendants, respectfully sets forth and alleges that:

NATURE OF THE CLAIMS

1. This is a civil action for compensatory, injunctive, punitive, and exemplary
damages for the wrongful arrest, excessive force, assault, battery, negligence, recklessness and
carelessness of the Defendants, which caused the Plaintiff to suffer serious injury.

2. This action is to redress the deprivation under the color of statute, ordinance,
regulation, custom or usage of a right, privilege and immunity secured to the Plaintiff by the
United States Constitution, particularly 1st, 4th, 5th and 14th Amendments, 42 U.S.C. Sections
1983, 1985, 1986, and 1988, Monell, and the laws and statutes of New York State.

3. This case arises out of an incident occurring on or about April 23, 2012.

4. Defendants' conduct was knowing, malicious, wanton and in reckless disregard of the Plaintiff's rights. It has caused and continues to cause the Plaintiff to suffer substantial economic and non-economic harm, severe mental anguish and emotional distress.

JURISDICTION & VENUE

5. This Court has jurisdiction over this matter because this case arises out of an incident that occurred in New York County.

6. Venue is proper in this district pursuant to CPLR § 504 because the cause of actions arose in New York County.

PARTIES

7. Plaintiff Cavell Tate is and was at the time of the occurrence a New York resident residing at of 8-14 W. 111th Street, Apartment 2F, New York, New York 10026.

8. Defendant City of New York is a municipal corporation duly existing under and by virtue of the laws of the State of New York and maintains its principal place of business at 100 Church Street, New York, New York 10007.

9. Defendant NYPD is the police department of the City of New York and maintains its principal place of business at 1 Police Plaza, New York, New York 10038. At all relevant times, Defendant NYPD was responsible for hiring, training, monitoring and supervising its employees.

10. At all relevant times, Defendant P.O. Edward Mendez was a police officer of the NYPD and representative of the City of New York, and he directly participated in the unlawful activity that is the subject of the Complaint.

11. At all relevant times, Defendant "JOHN" Wilinski was a police officer of the NYPD and representative of the City of New York, and he directly participated in the unlawful activity that is the subject of the Complaint.

12. At all relevant times, Defendants "JOHN DOES" were police officers of the NYPD and representatives of the City of New York, and they directly participated in the unlawful activity that is the subject of this Complaint.

13. At all relevant times, Defendants "JANE DOES" were police officers of the NYPD and representatives of the City of New York, and they directly participated in the unlawful activity that is the subject of this Complaint.

PROCEDURAL REQUIREMENTS

14. Within the requisite time period, Plaintiff filed a Notice of Claim against the City of New York and the NYPD on June 18, 2012.

15. An oral examination of the Plaintiff was held on August 23, 2012 in compliance with Section 50-H of the General Municipal Law.

16. All conditions and requirements precedent to the commencement of this action has been complied with.

FACTUAL ALLEGATIONS

17. On or about April 23, 2012 at approximately 6:30 PM, the Plaintiff was sitting in his lawfully parked vehicle outside of 564 West 160th Street, New York, New York.

18. While the Plaintiff was sitting inside his vehicle, Defendants P.O. Mendez and P.O. Wilinski approached the Plaintiff and ordered him to exit his vehicle with his hands raised.

19. The Plaintiff complied with the Defendants' order and inquired as to why the Defendants have directed him to exit his vehicle.

20. Defendants P.O. Mendez and P.O. Wilinski without just or probable cause accused the Plaintiff of unlawfully possessing a gun.

21. Without ever finding a gun on the Plaintiff or in his vehicle, the Defendants P.O. Mendez and P.O. Wilinski handcuffed and arrested the Plaintiff.

22. The Plaintiff was held in police custody overnight despite the fact that the police did not have probable cause to do so.

23. The case against the Plaintiff was dismissed on October 17, 2012.

24. A subsequent notice of claim for malicious prosecution was filed on November 19, 2012.

25. During the arrest process the Defendants P.O. Mendez and Wilinski used excessive force causing the Plaintiff to sustain physical injuries to his right elbow and his left hand.

26. Defendants City of New York and NYPD had a policy, practice and/or procedure of inadequately training, supervising and monitoring their agents, servants, police officers, sergeants, detectives, lieutenants, captains and/or employees regarding the proper basis for arrests, arrest procedures, justification for arrests, and/or handling arrested individuals with the proper care and safety to protect them from unnecessary harm. This policy was in reckless disregard to the rights of citizens, like the Plaintiff, who was not involved in any criminal wrongdoing.

27. Defendants City of New York and NYPD breached their duty to ensure that the actions, activities, and behavior of its said servants, agents, sergeants, detectives, lieutenants, captains and/or employees conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk and harm, and that they do not conduct

themselves in a manner that would intentionally, wantonly, and/or negligently cause injuries to others, including the Plaintiff herein.

28. Defendants City of New York and NYPD had a duty to sufficiently screen for hiring, train and supervise, at the command, precinct and patrol levels, its servants, agents, police officers, detectives, employees, and/or personnel so as to ensure the safety, protection, security and well-being of persons who were in the presence, proximity, custody and/or control of the NYPD, officers, detectives, sergeants, lieutenants and/or personnel.

29. As a result of Defendants City of New York and NYPD's failure to properly hire, train, and supervise their employees, P.O. Mendez and P.O. Wilinski were able to act in reckless disregard to the rights of the Plaintiff by abusing their role as police officers by wrongfully arresting, using excessive force, assaulting, battering, and acting in a reckless and careless manner with regards to the Plaintiff's rights.

30. Furthermore, Defendants P.O. Mendez and P.O. Wilinski had a duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm, as well as to conduct themselves in a manner that would not intentionally, wantonly, and/or negligently cause injuries to others, including the Plaintiff herein.

FIRST CAUSE OF ACTION
(42 U.S.C. §1983)

31. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 28, inclusive, as if fully set forth herein.

32. The Defendants violated their duty to provide and/or ensure the safety, protection and well-being of the Plaintiff who was in the presence, custody and/or control of its personnel.

33. Defendants City of New York and NYPD had a duty to ensure the actions, activities, and behavior of its said servants, employees, personnel, and/or police officers allowed for the safety of New York citizens. By not doing so, the Defendants City of New York and the NYPD through its employees Defendants P.O. Mendez and P.O. Wilinski violated the Plaintiff's rights under the United State Constitution, particularly the 1st, 4th, 5th, 6th and 14th Amendments, 42 U.S.C. § § 1983, 1985, 1986 and 1988, Monell, and the laws and statutes of New York.

34. At all relevant times, Defendants P.O. Mendez and P.O. Wilinski were representatives of the Defendant City of New York and employees of Defendant NYPD. Thus, Defendants City of New York and NYPD had a duty to ensure that the actions, activities and behavior of Defendants P.O. Mendez and P.O. Wilinski conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm, and not in a manner so as to not intentionally wantonly and/or negligently do harm to others, including Plaintiff Cavell Tate herein.

35. Defendants P.O. Mendez and P.O. Wilinski in the course and scope of their employment as police officers and representatives for the Defendants City of New York and NYPD violated the Constitutional Rights of Plaintiff Cavell Tate to be safe and secure in his person guaranteed to him by the 4th, 5th and 14th Amendments. He was also subjected to cruel and unusual punishment under the 5th Amendments, by virtue of being physically assaulted and battered while in handcuffs and detained by said Police Officers.

36. As a result of the Defendants' actions, Plaintiff Cavell Tate was severely injured, suffered mental anguish, great physical pain and emotional upset, some of which are permanent in nature and duration.

37. The resulting injuries sustained by Plaintiff Tate were caused solely by the Defendants, in violation of Plaintiff Tate's Civil and Constitutional rights, and without any cause, provocation, or negligence on the part of Plaintiff Tate contributing thereto.

SECOND CAUSE OF ACTION
(Monell)

38. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 35, inclusive, as if fully set forth herein.

39. At all relevant times, Defendants City of New York and NYPD maintained a custom, practice and/or policy of not properly training, supervising their police officers to respond to complaints of criminal wrongdoing.

40. Their policies, customs and/or practices allowed Defendants P.O. Mendez and P.O. Wilinski to deprive the Plaintiff of his rights under both Federal and State law resulting in him suffering serious injury.

41. As a result of the foregoing policies, customs and/or practices, Plaintiff Tate has suffered and continues to suffer serious injury and damages.

THIRD CAUSE OF ACTION
(Negligent Hiring, Training and Supervision)

42. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 40, inclusive, as if fully set forth herein.

43. At all relevant times, the Defendants City of New York and NYPD had a duty screen applicants for hire, retention or discharge those employees who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard, or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological,

racist, biased and/or physiological traits or characteristics unsuitable, unstable, or contraindicated for such employment.

44. At all relevant times, it was the duty of the Defendants City of New York and NYPD to sufficiently hire, train, retain personnel within the Police Academy and at the Command, Precinct and Patrol levels so as to sufficiently discipline, supervise, promulgate, and put into effect appropriate rules applicable to the duties, behavior and activities of their servants, agents, police officers, employees and/or personnel.

45. As a result of the Defendants' breach of duty, the Plaintiff was caused to suffer severe injuries and damage, without fault or contributing by the Plaintiff. As such, the Plaintiff has suffered and continues to suffer extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries that are permanent in nature and duration.

FOURTH CAUSE OF ACTION **(Excessive Force)**

46. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 43, inclusive, as if fully set forth herein.

47. Plaintiff was unlawfully placed in the custody of the NYPD and was wrongfully assaulted, battered, handcuffed, detained, confined and arrested without just cause or provocation.

48. As a result of the foregoing, the Plaintiff's rights secured under the United States Constitution, particularly the 1st, 4th, 5th and 14th Amendments, 42 U.S.C. §§ 1983, 1985, 1986 and 1988, Monell, and the Laws of the State of New York were violated by the Defendants P.O. Mendez and P.O. under the color and pretense of the statutes, ordinances, regulations,

customs and usages of the State of New York and the City of New York, and under the authority of their position as law enforcement officers.

FIFTH CAUSE OF ACTION
(Malicious Prosecution)

49. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 47, inclusive, as if fully set forth herein.

50. The Defendants, its servants, agents, sergeants, detectives, lieutenants, captains and/or employees intentionally, wantonly, maliciously and falsely prosecuted the plaintiff for the criminal charges of which they accused the Plaintiff.

51. The charges brought against the Plaintiff by the Defendants were solely for the purpose of shielding and/or purportedly justifying the unconscionable arrest and unlawful treatment and abuse perpetuated upon the Plaintiff by the Defendants, all of which are in violation of Plaintiff's rights under 42 U.S.C. § 1983, et seq and New York law.

52. Through their actions the Defendants intentionally, wantonly and malicious prosecuted and/or caused, compelled, ordered, directed and/or permitted the malicious prosecution of the Plaintiff, as a common criminal, causing and/or compelling him to appear in public and in Court and falsely prosecuted the Plaintiff.

53. The charges brought against the Plaintiff were dismissed by the Criminal Court of the City of New York on or about October 17, 2012.

SIXTH CAUSE OF ACTION
(Negligence Statutory Violations of New York Law)

54. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 52, inclusive, as if fully set forth herein.

55. The Defendants City of New York and the NYPD negligently failed to provide for the safety, security and protection of the Plaintiff by failing to assist him properly, allowing him to fall and suffer grave injuries.

56. In addition, the Defendants City of New York and NYPD negligently failed to prevent the within incidents of extraordinary violence and intentional infliction of physical and emotional distress by Defendants P.O. Mendez and P.O. Wilinski who were acting within the course and scope of their employment for the said defendants.

57. As a result of the foregoing, the plaintiff was seriously injured.

58. By reason of the foregoing, the Plaintiff sustained serious personal injuries that have resulted in and will continue to result in severe pain and suffering, from the moment of this accident and continuing, which resulted from the injuries sustained by reason of the illegal, wanton, malicious, callous, careless, reckless, intentional, and/or negligent conduct of the Defendants, and without any negligence on the part of the Plaintiff contributing thereto.

59. This action falls within one or more of the exceptions set forth in CPLR 1602.

60. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants owed the Plaintiff a non-delegable duty of care.

61. Pursuant to CPLR Section 1602(7), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted with reckless disregard of the safety of others.

62. Pursuant to CPLR Section 1602(2)(iv), the Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said Defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the Plaintiff's damages.

63. Pursuant to CPLR Section 1602(11), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of Plaintiff's injuries.

WHEREFORE, Plaintiff prays that the Court enter judgment in their favor and against the Defendants, containing the following relief:

A. An award of damages in an amount to be determined at trial, but in any event in excess of the jurisdictional limit of any other court which might otherwise have jurisdiction over this matter, plus prejudgment interest, to compensate Plaintiff for his monetary and/or economic damages;

B. An award of damages in an amount to be determined at trial, but in any event in excess of the jurisdictional limit of any other court which might otherwise have jurisdiction over this matter, plus prejudgment interest, to compensate Plaintiffs for all his non-monetary and/or compensatory damages, including but not limited to, compensation for severe mental anguish and emotional distress, humiliation, embarrassment, stress and anxiety, loss of self-esteem, self-confidence and personal dignity, emotional pain and suffering and other physical and mental injuries;

C. An award of costs that Plaintiff has incurred in this action, as well as Plaintiff's reasonable attorneys' fees to the fullest extent permitted by law;

D. An award of punitive damages against the individually named Defendants in both their official and individual capacities; and

E. Such other and further relief as this Court may deem just and proper.

JURY DEMAND

Plaintiff demands a trial by jury on all issues of fact and damages.

Dated: New York, New York
January 15, 2013

Yours, etc.,

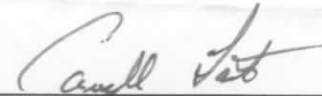
A handwritten signature in dark ink, appearing to read "Derek S. Sells", is written over a horizontal line.

Derek S. Sells
THE COCHRAN FIRM
Attorneys for Plaintiff
233 Broadway, 5th Floor
New York, New York 10279
(212) 227-9740

INDIVIDUAL VERIFICATION

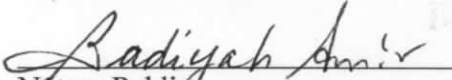
State of New York)
) ss.:
County of New York)

CAVELL TATE, being duly sworn, deposes and says that I am one of the Petitioners in the within proceeding; that I have read the foregoing Petition and know the contents thereof; that the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and, as to those matters, I believe them to be true.



CAVELL TATE

Sworn to before me this
11 day of January, 2013


Notary Public

BADIYAH AMIR
Notary Public, State of New York
No. 01AM6174527
Qualified in New York County
Commission Expires Sept. 24, 2015